

24CHCV02884 24CHCV02884

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Case Number: 24CHCV02884 Hearing Date: August 7, 2026 Dept: F47

Dept. F47

Date: 8/7/26

TRIAL DATE: 10/12/26

Case #24CHCV02884

MOTION FOR

LEAVE TO AMEND ANSWER

Motion filed on 3/20/26.

MOVING PARTY: Defendants Volkswagen Group of America,
Inc. and Audi Valencia

RESPONDING PARTY: Plaintiffs Victoria Noel Amoscato

NOTICE: ok

RELIEF REQUESTED: An order granting Defendants

Volkswagen Group of America, Inc. (Volkswagen) and Audi Valencia (Audi) leave

to file amended Answers to include an additional "Release and Bar/Res

Judicata/Claim Preclusion/Issue Preclusion" affirmative defenses. Specifically, Volkswagen seeks to add a 29th

affirmative defense of "Release and Bar/Res Judicata/Claim Preclusion/Issue

Preclusion" and Audi seeks to add a 25th affirmative defense of

"Release and Bar/Res Judicata/Claim Preclusion/Issue Preclusion."

RULING: The motion is granted as set forth below.

SUMMARY OF ACTION & PROCEDURAL HISTORY

This lemon law case arises out of Plaintiffs Victoria Noel Amoscato and Tiny Bird Acupuncture/Wellness' (Plaintiffs) lease and eventual purchase of a 2019 Audi Q3 (the Vehicle) which was manufactured and/or distributed and warranted by Defendant Volkswagen Group of America, Inc. (Volkswagen). (Complaint ¶¶7-10). Plaintiffs contend the Vehicle suffered from defects, nonconformities, maladjustments or malfunctions which Defendant was unable to repair despite a reasonable number of attempts to do so. (Id. ¶¶12-15).

On 8/9/24, Plaintiffs filed this action against Volkswagen and Defendant Audi Valencia (collectively, Defendants) for Breach of Express Warranty Obligations Under the Song-Beverly Consumer Warranty Act and Breach of Implied Warranty Obligations Under the Song-Beverly Consumer Warranty Act. On 9/9/24, Defendants each filed Answers to the complaint.

On 3/20/26, Defendants filed and served the instant motion seeking an order granting Defendants leave to file amended Answers to include an additional "Release and Bar/Res Judicata/Claim Preclusion/Issue Preclusion" affirmative defense. Specifically, Volkswagen seeks to add a 29th affirmative defense of "Release and Bar/Res Judicata/Claim Preclusion/Issue Preclusion" and Audi seeks to add a 25th affirmative defense of "Release and Bar/Res Judicata/Claim Preclusion/Issue Preclusion."

Plaintiffs have opposed the motion and Defendants have filed a reply to the opposition.

ANALYSIS

Defendants' Request for Judicial Notice is granted. Plaintiffs' objection to the Request for Judicial Notice is denied.

CCP 473(a) provides:

"(1) The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any

party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.

(2) When it appears to the satisfaction of the court that the amendment renders it necessary, the court may postpone the trial, and may, when the postponement will by the amendment be rendered necessary, require, as a condition to the amendment, the payment to the adverse party of any costs as may be just."

Leave to amend an answer is usually liberally granted because denying such leave will permanently deprive the defendant of asserting the proposed defense. See *Hulsey* (1990) 218 CA3d 1150, 1159. It is an abuse of discretion to deny such leave, even if sought at the time of trial, if there is no prejudice to the plaintiff and denial will deprive the defendant of the opportunity of asserting a defense. See *Higgins* (1981) 123 CA3d 558, 564-565; *Berman* (1997) 56 CA4th 936, 945.

Defendants' Answers already assert affirmative defenses of "res judicata" and "claim preclusion," which Defendants contend apply to any claim based on an alleged sunroof defect. (See 27th and 28th Affirmative Defenses in Volkswagen's 9/9/24 Answer; 23rd and 24th Affirmative Defenses in Audi's 9/9/24 Answer). However, through discovery and further investigation, Defendants contend that they discovered: (1) the Vehicle is included in the Sunroof Class Action, (2) Plaintiffs did not opt out of the class action settlement, and (3) Plaintiffs complained of sunroof leak issues with the Vehicle. (Kim Decl. ¶¶4-5). Based on the foregoing, Defendants seek to assert a specific "Release and Bar" affirmative defense expressly tied to the Sunroof Class Action to ensure that Defendants may fully assert that Plaintiffs have released any claims relating to alleged sunroof defects in the Vehicle.

The opposition is based on the argument that Defendants inexplicably delayed in seeking leave to amend their answers which has caused substantial prejudice to Plaintiffs. Plaintiffs have

failed to establish that any delay in seeking leave to amend has caused the type of prejudice that would warrant denial of the motion.

While the trial date has been set, it is still more than 2 months away and the jury is not about to be impaneled. Contrast *P&D Consultants, Inc.* (2010) 190 CA4th 1332, 1345 citations omitted.

Additionally, Plaintiffs have failed to establish a lack of diligence on the part of Defendants and/or their attorneys in discovering the applicability of the proposed additional defense and/or seeking leave to add such defense. While Defendants and/or their counsel may have had knowledge of the class action settlement when they filed the original answers, discovery in this case revealed its applicability to Plaintiffs and the claims made in this case.

Further, Defendants' original answers already include defenses based on claim preclusion and *res judicata*. The proposed additional defense merely narrows and clarifies the issues.

The opposition arguments regarding the applicability, scope and effect of the class action settlement on Plaintiffs' claims improperly seek to adjudicate the merits of the proposed additional defense at this time.

Any prejudice Plaintiffs claim by allowing the proposed amendments can be resolved by continuing the trial date, which has never been continued in this case, and extending the discovery cut off date to correspond to the new trial date.

CONCLUSION

The motion is granted.

Defendants Volkswagen Group of America, Inc. and Audi Valencia are ordered to separately file their amended Answers. The Court notes that the proposed First Amended Answer of Volkswagen Group of America, Inc. incorrectly titled the proposed 29th affirmative defense as "Reservation of Defenses" despite the fact that the body of the 29th affirmative defense relates to the affirmative defense of "Release and Bar/Res Judicata/Claim Preclusion." (See Kim Decl., Ex.C). Defendant Volkswagen Group of America, Inc.

is ordered to correct the error in the First Amended Answer filed and to serve a corrected copy of the First Amended Answer on Plaintiffs.

The Court will discuss with counsel the need for a trial continuance.